

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 4	CCRB Case #: 201013965	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/09/2010 11:30 AM	Location of Incident: § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 4/9/2012	Precinct: 23
Date/Time CV Reported Mon, 10/11/2010 1:10 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/11/2010 1:10 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Heredia	25821	938656	NARCBMN
2. An officer			NARCBMN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Carlos Sierra	02246	937537	NARCBMN
2. DT3 Christia Mcbrearty	07985	920576	NARCBMN
3. DT3 Keith Carpenter	05123	932419	NARCBMN
4. DT3 Frank Lamagra	00819	922617	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Christophe Heredia	Force: PO Christopher Heredia used physical force against § 87(2)(b)	B . Exonerated
C . POM Christophe Heredia	Discourtesy: PO Christopher Heredia spoke obscenely to § 87(2)(b)	C . Exonerated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on October 11, 2010 (encl. 4a – 4b).

On October 9, 2010, at 11:30 AM, § 87(2)(b) and her husband, § 87(2)(b) went to § 87(2)(b) and § 87(2)(b) in Manhattan after learning that § 87(2)(b)'s father, § 87(2)(b) had been arrested. The following allegations resulted:

- **Allegation A – Discourtesy: An officer spoke obscenely to § 87(2)(b) § 87(2)(g)** it is recommended that Allegation A be closed, **Victim Uncooperative**.
- **Allegation B – Force: PO Christopher Heredia used physical force against § 87(2)(b) § 87(2)(g)** it is recommended that Allegation B be closed, **Exonerated**.
- **Allegation C – Discourtesy: PO Christopher Heredia spoke obscenely to § 87(2)(b) § 87(2)(g)** it is recommended that Allegation C be closed, **Exonerated**.

Results of Investigation

Civilian Statement(s)

Complainant/victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female who is § 87(2)(b).

§ 87(2)(b) was interviewed at the CCRB on October 20, 2010 (encl. 6a – 6c). On October 9, 2010, at 11:30 AM, § 87(2)(b) was with her husband, § 87(2)(b) and their two children, aged § 87(2)(b) and § 87(2)(b) respectively. They were driving when § 87(2)(b) received a call from one of his friends, whom § 87(2)(b) could not identify, who said that § 87(2)(b)'s father, § 87(2)(b) was being arrested in front of § 87(2)(b). They drove to the scene. § 87(2)(b) was in handcuffs next to two officers, identified through the investigation as Det. Keith Carpenter and Det. Frank Lamagra of Manhattan North Narcotics. § 87(2)(b) exited § 87(2)(b)'s vehicle and asked § 87(2)(b) if he was okay. The officers told him to back up. Later in her statement, § 87(2)(b) alleged that one of the officers told § 87(2)(b) to 'back the fuck up.' § 87(2)(b) complied, but began to argue with the officer. § 87(2)(b) exited her vehicle, joined § 87(2)(b) on the street, and told him to calm down. One of the officers told § 87(2)(b) "I'm not afraid from any of you fucks from East River," referring to the public housing complex. § 87(2)(b) began screaming and cursing at the officers, repeatedly saying he would 'fuck [them all] up.' The officers went to place § 87(2)(b) under arrest. Another officer, identified through the investigation as PO Christopher Heredia, approached § 87(2)(b) from behind, grabbed the front of her shirt with both hands, and pulled her backwards such that she fell on her back on the hood of her vehicle. § 87(2)(b) told PO Heredia to 'get the fuck' off of her, shoving at him with her hands. PO Heredia told her stay back and went to assist the officers who were placing § 87(2)(b) in handcuffs. § 87(2)(b) who is asthmatic, sat on the hood of her vehicle and tried to calm her breathing. She then began to look for her tennis bracelet which had fallen off during the incident. In her initial complaint to the CCRB (encl. 4a – 4b), § 87(2)(b) alleged that an officer refused to obtain medical treatment for her. In her interview (encl. 6a – 6c), § 87(2)(b) said that she asked an officer to call an ambulance, as her breathing was still labored. When the officer said he would do so and told her to calm down, § 87(2)(b) reconsidered and said she could calm her breathing without an ambulance. § 87(2)(b) then saw PO Heredia sitting in a black sedan. She pointed him out and told an officer that she wanted PO

Heredia's name and shield number. PO Heredia approached her and told her to 'get the fuck' away from him. § 87(2)(b) shouted and cursed at PO Heredia, accusing him of slamming her on her vehicle. PO Heredia responded that he had pushed her, not slammed her. § 87(2)(b) explained during her interview that she was 'in a rage' at this point and continued to shout and curse at PO Heredia until he returned to his black sedan. § 87(2)(b) eventually retrieved her bracelet and then drove to the 25th Precinct, where she learned that § 87(2)(b) and § 87(2)(b) had been taken to Manhattan Central Booking. Pursuant to his arrest, § 87(2)(b) was charged with § 87(2)(b) § 87(2)(b) was charged § 87(2)(b)

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) white male

§ 87(2)(b) provided a telephone statement to the CCRB on October 22, 2010 (encl. 7). On October 9, 2010, at 11:30 AM, § 87(2)(b) was walking near § 87(2)(b) and § 87(2)(b) in Manhattan. He saw a large crowd gathered at the corner across the street around three or four officers in plainclothes. § 87(2)(b) was 'verbally antagonizing' the officers. § 87(2)(b) explained that he could not hear what § 87(2)(b) was saying, but saw him push his shoulders forward in an aggressive fashion while gesturing and shouting. § 87(2)(b) was standing next to § 87(2)(b). She was screaming and cursing while pointing her finger in the face of another officer. She repeatedly tried to butt in between § 87(2)(b) and the officer facing him. The remaining officers at the scene tried to keep the crowd back. The officers told § 87(2)(b) to sit on the hood of a nearby vehicle. She responded by pushing one of the officers on his arm and screamed, "Don't you touch me." Several officers then handcuffed § 87(2)(b). Due to the number of people at the scene, it was difficult for § 87(2)(b) to see what was happening at all times and he did not know what prompted the officers to place § 87(2)(b) in handcuffs. § 87(2)(b) called 911 and said that officers needed assistance. He heard the sound of police sirens almost instantaneously. Uniformed officers responded to the scene and the crowd began to dissipate. As the officers in plainclothes began to leave the scene, § 87(2)(b) saw that § 87(2)(b) was still on the scene and assumed that the officers had decided not to arrest her. § 87(2)(b) did not hear any officers curse at any of the civilians.

Attempts to Contact Civilians

A letter was sent to § 87(2)(b) on October 14, 2010. On this date, a call was placed to his provided number and an interview was scheduled for October 20, 2010. On October 20, 2010, § 87(2)(b) informed the investigator that § 87(2)(b) would not be able to appear for his scheduled appointment. Between October 21, 2010, and October 26, 2010, four additional calls were placed to his provided number. On the last of these attempts, § 87(2)(b) spoke with the investigator and stated that he did not want to provide any statements regarding the incident or cooperate in any way with the investigation.

A please call letter was sent to § 87(2)(b) on October 22, 2010. Between October 22, 2010 and October 29, 2010, five calls were placed to his provided number and messages were left on four attempts. On October 29, 2010, a final please call letter was sent to § 87(2)(b). As of the date of this report, § 87(2)(b) has not contacted the CCRB.

NYPD Statement(s):

Subject Officer: PO CHRISTOPHER HEREDIA

- PO Heredia is a § 87(2)(b) Hispanic male who is § 87(2)(b).
- On the day of the incident, PO Heredia was assigned to the prisoner van and worked from 7:27 AM to 4:00 PM with PO Christia McBrearty in plainclothes and in an unmarked van.

CCRB Testimony

PO Heredia was interviewed at the CCRB on October 27, 2010 (encl. 9a – 9b). On October 9, 2010, at 11:30 AM, PO Heredia and his partner, PO McBrearty, received a radio communication that members of his field team had arrested the dealer in a narcotics sale at § 87(2)(b). They responded to the scene. Det. Keith Carpenter and Det. Frank Lamagra were standing in the street with a male in handcuffs, later identified through his arrest as § 87(2)(b). They were surrounded by a crowd of ten to fifteen people who were screaming and cursing at the officers. A male, identified through his arrest as § 87(2)(b) and a female, identified through the investigation as § 87(2)(b) were closest to the officers. § 87(2)(b) yelled that § 87(2)(b) was his father and demanded to know why he had been arrested. The officers told him to stay back. PO Heredia and PO McBrearty broke through the crowd in the hopes of getting § 87(2)(b) into the prisoner van. PO Heredia escorted § 87(2)(b) to the van while PO McBrearty stayed to assist in crowd control. Additional members of the field team responded to the scene. PO Heredia heard yelling between PO McBrearty and § 87(2)(b). PO McBrearty repeatedly told § 87(2)(b) to stay back, but § 87(2)(b) did not comply. PO Heredia did not recall if any officers told § 87(2)(b) to ‘back the fuck up.’ None of the officers remarked, “I’m not afraid of any of you fucks from East River.” PO McBrearty grabbed § 87(2)(b) and tried to place him in handcuffs.

PO Heredia went to assist. As PO Heredia and PO McBrearty struggled to pull § 87(2)(b) s arms behind his back, § 87(2)(b) tried to pull the officers off of § 87(2)(b). The officers repeatedly told her to get back, but she kept circling them and trying to pull them away from § 87(2)(b). PO Heredia feared for his safety. Both of his hands were on § 87(2)(b) s arms and he did not want § 87(2)(b) to try and grab his firearm. PO Heredia turned around and pushed § 87(2)(b) back on her chest with both hands. She stumbled back and PO Heredia returned his attention to § 87(2)(b) whom he and PO McBrearty eventually handcuffed. During the struggle, the officers were still surrounded by the people in the crowd, who screamed and cursed at them despite numerous orders to disperse. An officer requested assistance and uniformed officers arrived to assist in dispersing the crowd. PO Heredia put § 87(2)(b) in the prisoner van. He then discovered that he had lost his cell phone at some point during the struggle. PO Heredia began to look for it. § 87(2)(b) approached him at this time. He had lost sight of her after pushing her away. § 87(2)(b) began screaming and cursing at him, shouting, “You punched me!” PO Heredia replied, “No, I pushed you.” Other officers in their vicinity told § 87(2)(b) to get back, but she continued to yell. Based on her boisterous behavior, PO Heredia feared that § 87(2)(b) posed a threat. PO Heredia said, “Get away from me.” He never said, “Get the fuck away from me.” § 87(2)(b) eventually walked away and PO Heredia resumed looking for his cell phone. He did not recall if § 87(2)(b) ever requested his name and shield number. His shield was clearly displayed about his neck on a chain and PO Heredia never refused to provide his name and shield number. He explained that he could have arrested her for obstructing governmental administration and disorderly conduct. As she had two infant children with her, PO Heredia decided to exercise his discretion by not placing her under arrest for this charge.

Officers Not Interviewed by the Investigation

§ 87(2)(g)

NYPD Document(s)

SPRINT Record

- According to a SPRINT record (encl. 12a – 12b), on October 9, 2010, at 11:45 AM, a male identified by last name as § 87(2)(b) called 911 to report that there was a large group of about 50 people at the corner of § 87(2)(b) and § 87(2)(b) and that the officers at the scene would likely need assistance. Sector D from the 23rd Precinct then advised Central that multiple arrests had been made at the location and additional units were needed for crowd control. At 11:49 PM, Sector D reported that the situation was now under control.

Summons/Arrest for Incident and Disposition

- § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officer(s) CCRB History

- PO Heredia has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 3).

Conclusion

Identification of Subject Officer(s)

- PO Heredia acknowledged interacting with § 87(2)(b)
- § 87(2)(b) alleged that an officer directed profanity towards § 87(2)(b)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

In her initial complaint to the CCRB (encl. 4a – 4b), § 87(2)(b) alleged that an officer refused to obtain medical treatment for her upon request. In her interview with the CCRB, § 87(2)(b) clarified that she asked an officer to call her an ambulance. He agreed to do so, at which time § 87(2)(b) reconsidered and said that she did not need an ambulance. § 87(2)(g)

§ 87(2)(b) stated in her interview with the CCRB, that she pointed towards PO Heredia and told an officer she wanted PO Heredia's name and shield number. § 87(2)(b) did not ask PO Heredia for the information. § 87(2)(g)

Allegation A – Discourtesy: An officer spoke obscenely to § 87(2)(b)

§ 87(2)(g) It is therefore recommended that Allegation A be closed, **Victim Uncooperative**.

Allegation B – Force: PO Christopher Heredia used physical force against § 87(2)(b)

It is undisputed that PO Heredia used force against § 87(2)(b). § 87(2)(b) asserted that this force came unprovoked as she stood on the street and tried to calm § 87(2)(b). § 87(2)(g) According to PO Heredia, § 87(2)(b) screamed and cursed at the officers, refused repeated orders to back away, and then tried to pull the officers off of § 87(2)(b) as they tried to place him under arrest. § 87(2)(g)

According to Criminal Procedure Law Section 35.30, an officer may use physical force “when and to the extent he reasonably believes such to be necessary to...prevent the escape from custody, or to defend himself or a third person from what he reasonably believes to be the use or imminent use of physical force” (encl. 1). § 87(2)(g)

§ 87(2)(b). It is therefore recommended that Allegation B be closed, **Exonerated**.

Allegation C – Discourtesy: PO Christopher Heredia spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that PO Heredia told her to ‘get the fuck away’ from him. PO Heredia denied saying this, though he acknowledged telling § 87(2)(b) to ‘get away from [him].’ § 87(2)(b) stated he did not hear any officer curse at any of the civilians. § 87(2)(g)

§ 87(2)(b) who was passing by the scene at the time of the incident, specifically called 911 to report that the officers at the scene needed assistance to deal with the crowd in which § 87(2)(b) was part (encl. 12a – 12b). § 87(2)(g)

According to Police Department v. Court (OATH Index no. 7962/04, August, 2004), the use of profanity does not rise to the level of actionable misconduct when used during a stressful street encounter, the Court noted that “Whenever a civilian refuses to comply with a direct order issued by a police officer in the street in the presence of other civilians, the potential exists that the refusal will encourage others to do likewise, thereby possibly igniting the crowd and converting...the situation into a potentially dangerous and even explosive one” (encl. 2a – 2i) § 87(2)(g)

§ 87(2)(b). It is therefore recommended that Allegation C be closed, **Exonerated**.

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date